

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-020
Amendment to Title 2 of the Chickasaw Nation Code
(Chickasaw Tribal Utility Authority)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, amendments to sections of the Code of the Chickasaw Nation are necessary to provide for uniformity in the appointment of members of the board of trustees for the Chickasaw Tribal Utility Authority,

NOW, THEREFORE, BE IT RESOLVED, that Chickasaw Tribal Legislature hereby authorizes and approves amending Title 2, Chapter 10, Article I, of the Code of the Chickasaw Nation, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

* * *

SECTION 2-1009.2 **GENERAL POWERS.**

* * *

B. The business and affairs of the Authority shall be managed by a board of five (5) trustees, consisting of a chairman, vice chairman, ~~secretary~~ and ~~two~~ **three** other members, which board shall exercise all the powers of the Authority except such as are by law, or this Code, conferred upon or reserved to the Legislature or to the Executive Department.

SECTION 2-1009.3 **CHAIRMAN.**

~~“The board of trustees shall elect one from among themselves to serve a three-year term as Chairman of the Authority and the Chairman shall~~ **The Chairman shall be appointed by the Governor of the Nation. The Chairman shall:**

* * *

SECTION 2-1009.4**VICE CHAIRMAN.**

The Vice Chairman shall be appointed by the Governor of the Nation ~~and shall be a member of the Legislature. Such appointment shall be confirmed by a majority of the Legislature.~~ The Vice Chairman, in ~~the~~ absence of the Chairman or in the event of his inability or refusal to act, shall perform the duties of the Chairman and, when so acting, shall have all the power of and be subject to the restrictions upon the Chairman. The Vice Chairman shall also perform such other duties as from time to time may be assigned to him by the board of trustees.

SECTION 2-1009.5**SECRETARY.**

~~The Secretary shall be appointed by the Governor from the Nation at large, and shall be confirmed by a majority of the Legislature~~ **The Secretary shall be designated by the board of trustees and shall be a member of the staff of the Authority.** The Secretary shall be responsible for:

1. keeping the minutes of the meetings of the board of trustees in books provided for that purpose;
2. seeing that all notices are given in accordance with ~~these~~ **the** bylaws or as required by law;
3. the safekeeping of the corporate books and records and seal of the Authority and affixing the seal of the Authority to all documents, execution of which on behalf of the Authority under its seal is duly authorized in accordance with the provisions of ~~these~~ **the** bylaws;
4. keeping on file at all times a complete copy of the **minutes** and bylaws of the Authority containing all amendments thereto, which copy shall always be open to the inspection of any citizen of the Nation, and shall, at the expense of the Authority, furnish a copy of the bylaws and of all amendments thereto upon request; and
5. performing ~~all duties incident to the office of Secretary and~~ such other duties as from time to time may be assigned to him **or her** by the board of trustees.

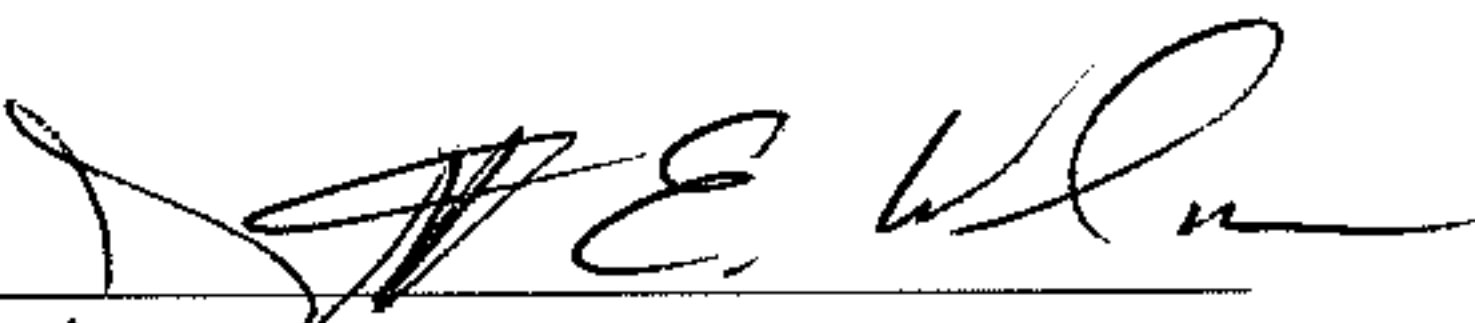
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SECTION 2-1009.6**OTHER BOARD MEMBERS.**

All **five** members of the board of trustees shall be appointed by the Governor from the Chickasaw Nation ~~at large,~~ **shall serve terms of three years,** and shall be confirmed by a majority of the Legislature.

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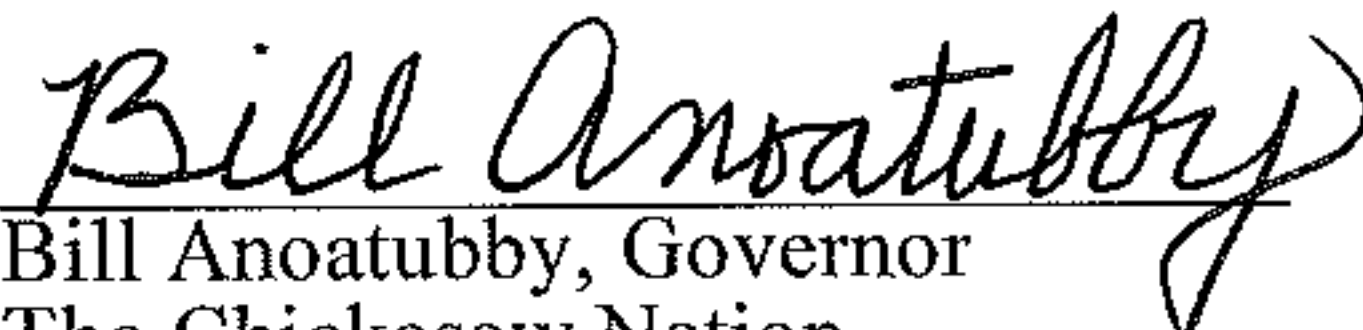
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 21, 2021, by a vote of 12 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 24 2021

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Explanation:

This resolution amends sections in Title 2 to allow for the governor to appoint the Chairman of the Chickasaw Tribal Utility Authority, directly, without a vote of the board of trustees. The Vice Chairman would continue to be selected and appointed by the Governor, but would no longer be required to be a member of the Chickasaw Tribal Legislature. The Secretary would be selected by the trustees and would be an employee of the Chickasaw Tribal Utility Authority.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature